

Agreement for Connecting Solar Energy System to the Distribution System of the licensee

This Memorandum of Agreement is made on this _____ of _____ Year at _____ between _____ with consumer number _____ the eligible consumer herein after referred to as 'consumer' residing at _____ as first party.

AND

The Kerala State Electricity Board Limited, a company incorporated under the Indian Companies Act. 1956 (Central Act 1 of 1956), having its registered office at Vidyuthi Bhavanam. Pattom, Thiruvananthapuram represented by Shri..... Assistant engineer
herein after referred to as KSEB Limited (which expression shall unless excluded by
or

repugnant to the context or meaning thereof be deemed to include its successors, representatives and assignees) as second party, of the agreement;

Whereas, the consumer has installed a solar energy system at the premises owned and possessed by him/her or owned by and possessed by the consumer under a valid lease agreement [strike out whichever is not applicable] and has requested KSEB Limited to provide connectivity to the said plant;

And whereas, the KSEB Limited agrees to provide to the consumer, a Solar Plant Identification Number (SPIN) as Scheduled in the agreement for the electricity generated from the above plant having Capacity as per conditions of this agreement and the regulations or - orders issued by the Kerala State Electricity Regulatory Commission (Renewable Energy & Net Metering) Regulations. 2020 as amended from time to time;

And whereas the consumer has, in addition to those automatic and inbuilt isolation devices within inverter and external manual relays, installed a manually operated isolating switch and associated equipment with sufficient safeguards between the solar energy system and the distribution system of KSEB Limited to prevent injection of electricity from his/her solar energy system to the distribution system of the licensee when the distribution system is de-energized;

And whereas, the consumer has assured that in case of a power outage in the system of KSEB Limited his/her plant will not inject power into the distribution system of the licensee and has produced separately the documents substantiating this assurance which form part of this agreement, as if incorporated herein;

And whereas, the consumer has undertaken that all the equipment connected to the distribution system comply with relevant international (IEEE/IEC) or Indian standards (BIS) and that installations of electrical equipment comply with the relevant provisions of the Central Electricity Authority (Measures relating to Safety and Electric Supply) Regulations. 2010

And whereas, the consumer undertakes that he/she is in possession of all the necessary approvals and clearances, including sanction from Electrical Inspector, as specified in relevant regulations for connecting the solar energy system to the distribution system for commissioning the solar energy system;

And whereas, the consumer shall remit the rent for solar meter and net meter, as applicable, charged by KSEB Limited at the rates approved by the Kerala State Electricity Regulatory Commission from time to time for the satisfactory fulfilment of this agreement

Now, therefore, both the parties hereby agree as follows:-

- 1 The net-metering connection shall be governed by the provisions contained in the Kerala State Electricity Regulatory Commission (Renewable Energy & Net Metering) Regulations, 2020 as amended from time to time and also subject to the condition that the solar energy system meets the requirements as per the provisions contained in Central Electricity Authority (Technical Standard for Connectivity of the Distributed Generation Resources) Regulations, 2013 as amended from time to time
- 2 KSEB Limited shall have the sole authority to decide based on the results of necessary studies, the interface/interconnection point to the solar energy system.
- 3 The validity of the agreement will be 25 years from the date of this agreement
- 4 If the consumer's solar energy system either causes damage to and/or produces adverse effects affecting other consumers or assets of KSEB Limited the consumer will have to disconnect solar energy system immediately from the distribution system upon direction from the KSEB Limited and correct the defect at his own expense prior to reconnection.
- 5 KSEB Limited shall have access to the metering equipment and disconnecting means for solar energy system in all required situations.
- 6 KSEB Limited shall have the right to disconnect solar energy system from the distribution system of the licensee in emergency, if it is found that at that point in time providing service through the net metering system is not safe to the grid as a whole.
- 7 The consumer indemnifies KSEB Limited for the damages or adverse effects, if any, from the negligence or intentional defective operation in the connection and operation of the solar energy system of the consumer;
- 8 KSEB Limited shall not be liable for delivery to or realization by the eligible consumer of any fiscal or other incentives provided by the Central/State Government or any other authority;
- 9 All the commercial settlements under this agreement shall follow the provisions of the Kerala State Electricity Regulatory Commission (Renewable Energy & Net Metering) Regulations, 2020 as amended from time to time
- 10 The consumer/KSEBL may terminate this agreement after giving thirty days' (30 days) clear notice in writing to the authorized authority of the Licensee/consumer.
- 11 KSEB Limited has the right to terminate this agreement at any point in time after giving 30 days' prior notice, if consumer breaches any terms of this agreement and in cases where such breaches could be rectified and the same are not provided/informed within 30 days of written notice from KSEB Limited about the breach.
- 12 The consumer agrees that upon termination of this agreement, he must disconnect the solar energy system from distribution system of KSEB Limited in a timely manner to the satisfaction of KSEB Limited.
- 13 The consumer shall have the right to bank and use the electricity generated and injected in excess over his/her full consumption, into the distribution system of the licensee by the solar energy system subject to the conditions specified in the Kerala State Electricity Regulatory Commission (Renewable Energy & Net Metering) Regulations, 2020 as amended from time to time
- 14 The consumer shall have the right for wheeling the excess electricity generated, by the solar energy system installed in the premises of the consumer (detailed under item II of the attached schedule), in accordance with Regulation 17 of KSERC (Renewable Energy & Net Metering)

Regulations, 2020 as amended from time to time and shall be used in the premises owned by the consumer and in the order of preference as detailed under item III of the attached schedule.

- 15 The licensee shall within seven days from the date of execution of this agreement connect the solar energy system.
- 16 The licensee shall pay for the net energy banked by the consumer at the end of the settlement period at the average pooled purchase cost of electricity as approved by the Commission for that year, as provided for in the Kerala State Electricity Regulatory Commission (Renewable Energy & Net Metering) Regulations, 2020 as amended from time to time

In witness whereof the said (1st party) and the said (2nd party) have hereunto signed at the day and year first above written.

Witness 1.....

Sd (1st party)

Witness 2

Witness 1

Sd (2nd party)

Witness 2